ANGELINE SUNGISAI (NEE MASVISVI)
versus
FADZAI BOZHO

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE; 19 May & 12 June 2026

Opposed Matter - Exception

S Muzondiwa, for the excipient (defendant)
W Mandinde, for the respondent (plaintiff)

MAXWELL J:

On 12 January, 2026, the respondent sued out summons seeking payment of US$15 000 for damages for contumelia, US$10 000 for damages for loss of consortium, interest in the sum of US $25 000 at the prescribed rate, calculated from 29 January 2025, to the date of full payment, and costs of suit on an attorney-and-client scale. In her declaration, she stated that she is married to Moses Sungisai under the then Marriage Act [*Chapter 5:11*], now the Marriages Act [*Chapter 5:17*]. The marriage still subsists. She averred that the defendant is aware of her marriage to Moses Sungisai, but despite this knowledge, the defendant is having an adulterous relationship with her husband.

She averred that she has evidence of the adulterous relationship, which her husband and close relatives have confirmed. She stated that the defendant is heavily pregnant as a result of the adulterous relationship with her husband. She further stated that she has lost the intimacy and warmth of her husband. She asserts that her marriage has been ruined and that intimacy has ceased between her and Moses Sungisai. She averred that she is also afraid of sexually transmitted infections, including the possibility of contracting HIV. She pointed out that she has suffered, has been diagnosed with depression and is currently under medical management. She mentioned that her dignity and social standing have been impaired as a result of this adulterous relationship. She stated that her claim is justified in light of the trauma and humiliation she has endured on account of the defendant's failure to keep away from her husband. She averred that she warned the defendant to cease any interaction with

Moses Sungisai, but she failed to heed the advice. She prayed for an order of costs on an attorney-and-client scale.

The defendant filed a notice of appearance on 10 February 2026. The defendant also filed a letter of complaint under Rule 42(3) of the High Court Rules, 2021, advising the plaintiff to withdraw her summons and tender wasted costs. The letter further advised the plaintiff of the defendant's intention to file a formal notice of exception.

On 12 March 2026, the defendant filed a notice of exception. She stated that the summons does not comply with the rules. She averred that the summons does not contain a true and concise statement of the nature, extent, and grounds of the cause of action and of the relief sought in the action. The defendant prayed for the exception to be upheld with costs and for the dismissal of the plaintiff's claim with costs.

PARTIES SUBMISSIONS

In its heads of argument, the defendant submits that the summons does not provide a clear and concise statement of the nature, extent, and grounds of the cause of action. The defendant avers that the summons contains only a prayer. The defendant alleges that a reading of the summons leaves the defendant uninformed as to the exact nature, basis, and branch of law that the defendant must answer. The plaintiffs made no effort to highlight the grounds on which the claim against the defendants is based. On the face of it, the summons is therefore uninformative and very vague.

Further, the defendant submits that the plaintiff failed to understand the exception. The defendant argued that the summons and the declaration are distinct pleadings. He averred that the exception applies only to the summons. The defendant further averred that the complaint is not rectified by the declaration. Finally, the defendant argued that Rule 12(5)(d) of the High Court Rules, 2021 requires the summons to clearly set out the cause of action upon which the plaintiff relies.

The plaintiff submits that the summons sufficiently states the cause of action, and that the claim is set out in the summons and in the declaration. He contended that the suggestion that the summons is different from the declaration is far-fetched.

ANALYSIS

An exception is a procedural mechanism designed to test the legal sufficiency of a pleading. The court must determine whether, on every reasonable interpretation of the summons, the plaintiff has disclosed a cause of action. If the pleading is vague to the extent

that the defendant cannot reasonably be expected to plead thereto. If, however, the summons discloses a cause of action, even if imperfectly pleaded, the exception must fail.

Rule 12 (5) (d) of the High Court Rules, 2021 provides that;

> "12 (5) Before issue, every summons shall set forth –
> (d) a true and concise statement of the nature, extent and grounds of the cause of action and of the relief or remedies sought in the action…"

In the case of *China Africa Cotton Zimbabwe (Pvt) Ltd* v *Quoton Seed Company* HH199/18 page 4, the court held that:

> "In addition, the courts have also consistently held that the object of any pleading is to state in clear and concise terms the facts upon which a party relies in order for each party to come to trial well prepared to meet the case it must answer and to enable the court to adjudicate thereon. In that regard, the courts invariably address the questions which I may generally express as follows:
> 1. Is a litigant sufficiently aware of the details of the claim?
> 2. Is the legal basis of such claim adequately articulated?
> 3. Is the relief clear?
>
> In the result, where the summons does not contain sufficient facts on the details of the claim, or where the relief sought is not sufficiently clear, the courts generally allow amendments, as this does not go to the root of the matter. Where however, the legal basis of the claim is completely absent, an exception is generally upheld as without a *causa*, a claim is dead in the water. Exceptionally, where a reading of the summons together with the declaration discloses the *causa* sufficiently, particularly where the summons specifically states that the claim is more fully amplified in the declaration, the courts have taken the robust approach to allow amendment of the cause of action."

Applying the principles in *China Africa* supra, the summons fails to meet two of the three requirements. The defendant is not aware of the details of the claim, and the legal basis is absent. Relief alone cannot sustain a claim. The relief is clear, but without a causa it is meaningless, the summons fails on the other requirements and is vague. The vagueness of the summons prejudices the defendant, who cannot reasonably prepare a defence. This undermines the fairness of the proceedings and offends the principle that pleadings must inform the opposing party of the case they must meet. The prejudice to the defendant is manifest, as she cannot reasonably prepare a defence to a pleading that lacks the essential factual foundation.

In the case of *Chifamba* vs *Mutasa and Ors* HH16/08 page 4, the court held that:

> "The purpose of pleadings is not only to inform the other party in concise of the precise nature of the claim they have to meet but pleadings also held to identify the branch of law under which the claim has been brought. Different branches of the law require different matters to be specifically pleaded for a claim to be sustainable under that action. Thus, for example in a divorce action, the allegation of irretrievable breakdown is imperative while in a delictual claim for bodily injury, fault has to be averred against the defendant. This may

> appear trite but a number of matters coming before the courts seem to indicate that legal practitioners have abandoned the need to plead a cause of action by making the necessary averments to sustain such an action"

It is trite that a summons that merely contains a prayer without setting out the material facts constituting the cause of action does not comply with the rule. Such a pleading is fatally defective, as it fails to disclose the nature, extent and grounds of the action. The plaintiff's summons lacks particularity, specificity and does not disclose a cause of action. The defendant is left to wonder as to what the nature or basis of the plaintiff's claim is.

It is pertinent to note that the immediate consequence of the plaintiff's non-compliance with Rule 12 (5) (d) of the High Court Rules, 2021 renders the summons a nullity. Having examined the summons, the court finds that the plaintiff has failed to set out the essential facts necessary to sustain the claim. The allegations are couched in general terms, without sufficient detail to establish the elements of the cause of action. The declaration cannot rectify a fatally defective summons. The two are distinct pleadings as evidenced by their regulation through different rules, Summons under Rule 12 and Declaration under Rule 13. Compliance with Rule 12 (5) (d) of the High Court Rules, 2021 is assessed at the summons stage. The summons omits material facts establishing the adulterous conduct and does not link the alleged conduct to the damages claimed, what remains is a bare prayer without a causa.

The court is satisfied that the plaintiff's summons, as presently framed, does not disclose a cause of action and is expiable. The defendant cannot reasonably be expected to plead to a document that lacks the essential factual foundation of the claim. The summons as they stand are vague and embarrassing and do not disclose a cause of action.

ACCORDINGLY, IT IS ORDERED AS FOLLOWS;

1. The exception be and is hereby upheld with costs.
2. The plaintiff's claim be and is hereby dismissed.

MAXWELL J:……

Maseko Law Chambers, Plaintiff's Legal Practitioners
Samukange Hungwe Attorneys, Defendant's Legal Practitioners